

Tentative Rulings
September 16, 2024
Department 44
2:30 p.m.

*****The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). *****

CONSERVATORSHIPS
CONSERVATORSHIP OF LOGAN GIBSON
Case Number: 24PC-0032456

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, and Determination of Appropriate Level of Care Form. All documents have been filed and are accepted by the Court. The Court confirms the future date of July 14, 2025, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF ARGENT HALE
Case Number: 23PC-0032036

This matter is on calendar for Annual Review. The Court has not yet received the Court Investigator's Report. This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44.** **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JAMES JONES
Case Number: CVPG19-0030121

This matter is on calendar for Biennial Review. The Court has not yet received the Court Investigator's Report. This matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44.** **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN MCKENZIE
Case Number: CVPG92-0019491

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. No Receipts have been filed. No Petition for Final Discharge is on file. A Status Report has been filed which requests additional time to file the documentation. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF PETER MITCHELL

Case Number: 24PC-0032302

This matter is on calendar to confirm filing of the Final Inventory and Appraisal. A Partial Inventory and Appraisal No. 2 was filed on August 29, 2024. No Final Inventory and Appraisal has been filed. A Status Report and Petition for Increase of Bond has been filed and is set for hearing on October 7, 2024. That date is confirmed. Today's hearing has been VACATED. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DANIEL MOSIER

Case Number: 23PC-0032093

This matter is on calendar for further proceedings regarding the Status of Accounting. No Accounting has been filed. A Status Report has been filed, which requests that the matter be continued to be heard concurrently with a motion to be relieved as counsel. The matter is continued to **Monday, October 14, 2024, at 2:30 p.m. in Department 44** for status of accounting. **No appearance is necessary on today's calendar.**

This matter is also on calendar for further proceedings on a Petition for Appointment of Conservator of the Person and Estate. The matter has been properly noticed, with proof of service on file. There is proof of service of the Citation. Counsel has been appointed for the Conservatee. A Capacity Declaration has been filed. No objections have been raised. The Court has reviewed the Court Investigator's Report, filed September 4, 2024, which recommends granting the Petition. The report states that the Conservatee will attend the hearing. The Court Investigator further notes that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process. Absent an appearance and objection by Counsel for the proposed Conservatee, the Petition is **GRANTED**. The Court finds that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process and is therefore disqualified from voting. **The clerk is directed to forward the Court's order and voting determination to the Secretary of State and the county elections official in the format prescribed by the Secretary of State.** A proposed order was submitted and will be executed by the Court. The matter is set for **Monday, December 30, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of the Conservatorship Care Plan, Determination of Appropriate Level of Care Form, proof of service of the Notice of Conservatee's rights, and Inventory and Appraisal. The matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

CONSERVATORSHIP OF MICHAEL OGIER

Case Number: CVPG14-0027875

This matter is on calendar for hearing on the Eleventh Account and Report of Conservator and Trustee, Petition for Sufficiency of Bond and Approval of Compensation. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears in order. The Petition is **GRANTED**. A proposed order was lodged with the Court and will be executed. The clerk is instructed to return the original lodged documents to Counsel. This matter is set for **Monday, April 13, 2026, at 2:30 p.m. in Department 44** for hearing on the Twelfth Account. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF PAIGE PENDLETON

Case Number: 24PC-0032481

This matter is on calendar for further proceedings on a Petition for Appointment of a Conservator of the Person. Multiple defects were previously raised by the Court on July 15, 2024, and the Petitioner ordered to file an Amended Petition, timely file and serve a new Notice of Hearing and to have a new Citation issued and served. No Amended Petition has been filed. No Notice of Hearing has been filed. No new Citation has been issued. This matter is continued to **Monday, November 25, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file an Amended Petition which corrects the defects previously noted. Petitioner shall also have a Citation issued and timely served for the continued hearing date. Finally, Petitioner shall file and timely serve a new Notice of Hearing along with the Amended Petition for the continued hearing date. The clerk is instructed to mail a copy of today's minute order to the Petitioner. A failure to correct the defects by the next hearing date may result in the denial of the Petition. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN ROCHA

Case Number: 24PC-0032552

This matter is on calendar for confirmation of counsel and further proceedings on the Petition for Appointment of Conservator. An Amended Petition has been filed and noticed for hearing on September 30, 2024. The Court confirms the future hearing date of September 30, 2024. This matter is continued to **Monday, September 30, 2024, at 2:30 p.m. in Department 44** for confirmation of counsel. The clerk is instructed to provide a copy of today's minute order and the August 19, 2024, minute order to the Public Defender. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DOLORES WINDUST

Case Number: 24PC-0032549

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. The matter has been properly noticed, with proof of service on file. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. No objections have been raised. The Court has reviewed the Court Investigator's report, filed September 5, 2024, which recommends granting the Petition. The report states that the Conservatee will attend the hearing and wishes to contest the establishment of the Conservatorship. The Court Investigator further notes that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process. Absent an appearance and objection by Counsel for the proposed Conservatee, the Petition is **GRANTED**. The Court finds that the Conservatee cannot communicate, with or without reasonable accommodations, a desire to participate in the voting process and is therefore disqualified from voting. **The clerk is directed to forward the Court's order and voting determination to the Secretary of State and the county elections official in the format prescribed by the Secretary of State.** A proposed order was submitted and will be executed by the Court. The matter is set for **Monday, December 30, at 2:30 p.m. in Department 44** for confirmation of filing of the Conservatorship Care Plan, Determination of Appropriate Level of Care Form, proof of service of the Notice of Conservatee's Rights and Inventory and Appraisal. The matter is set for **Monday, September 15, 2024, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**